

10 & 11 GEO. 6.

Ministry of Health

Ch. xxi.

Provisional Order Confirmation (Gloucester) Act, 1947.



CHAPTER xxi.

An Act to confirm a Provisional Order of the Minister of Health relating to the city of Gloucester.

[31st July 1947.]

WHEREAS under the provisions of the Public Health Act 38 & 39 Vict. 1875 the Minister of Health has made a Provisional Order ^{c. 55.} which needs confirmation by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order of the Minister of Health which as amended is set out in the schedule to this Act is hereby confirmed and shall have full validity and force. Order in
schedule
confirmed.
2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Gloucester) Act 1947.

SCHEDULE.

CITY OF GLOUCESTER.

Provisional Order altering amending and partially repealing local Acts.

38 & 39 Vict.
c. 55.

WHEREAS the mayor aldermen and citizens of the city of Gloucester in the county of the city of Gloucester acting by the Council (in this order called "the Corporation") are the local authority for the said city for the purposes of the Public Health Act 1875 :

And whereas under powers conferred on them by the local Acts hereinafter mentioned the Corporation have established and hold markets and fairs at the cattle market in the centre of the said city for the sale of live stock and agricultural and horticultural produce and commodities and are desirous of being empowered from time to time to alter the places at which the said markets and fairs are or may be held to establish and hold new markets and to discontinue the whole or any part of any existing or new markets :

57 & 58 Vict.
c. xci.

1 & 2 Geo. 5.
c. xcii.

18 & 19 Geo. 5.
c. lxxii.

37 & 38 Vict.
c. cxi.

And whereas the Corporation are empowered (i) by section 71 of the Gloucester Corporation Act 1894 to demand and take with respect to the sale of hay straw and other agricultural produce the tolls and charges specified in the Second Schedule to that Act (ii) by section 100 of the Gloucester Corporation Act 1911 to demand and take with respect to the sale of fruit vegetables poultry and horticulture produce as well as agriculture produce the tolls and charges specified in the Third Schedule to that Act and (iii) by section 68 of the Gloucester Corporation Act 1928 to demand and take with respect to markets and fairs at their cattle market as existing at the passing of that Act or as from time to time enlarged by them the tolls and charges specified in the schedule to that Act or such other tolls as might from time to time be fixed in manner provided by section 167 of the Public Health Act 1875 in respect of livestock and things therein described in lieu of the tolls and charges authorised to be taken by them in respect thereof by section 25 (Power to take market and fair tolls) of the City of Gloucester Extension and Improvement Act 1874 and the Corporation are desirous of substituting new tolls and charges for those specified as aforesaid :

And whereas the Corporation have applied to the Minister of Health (in this Order called "the Minister") for the issue of a Provisional Order to alter amend and partially repeal the local Acts hereinafter mentioned for the purposes aforesaid :

Provisional Order Confirmation (Gloucester) Act, 1947.

Now therefore the Minister in pursuance of the powers given to him by section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows:—

1. This Order may be cited as the Gloucester Markets Order 1947 and shall come into operation on the date of the Act of Parliament confirming it. Short title and commencement.

2. In this Order unless the context otherwise requires—

Interpretation.

“the city” means the city of Gloucester in the county of the city of Gloucester;

“the Act of 1821” means the Act of that year intituled “An Act for establishing a proper Place for holding Markets and Fairs for the Sale of Live Stock in the City of Gloucester and the Suburbs thereof and for opening convenient Avenues thereto and for watching and otherwise improving the said City”; 1 & 2 Geo. 4.
c. xxii.

“the Act of 1874” means the City of Gloucester Extension and Improvement Act 1874;

“the Act of 1894” means the Gloucester Corporation Act 1894;

“the Act of 1911” means the Gloucester Corporation Act 1911;

“the Act of 1928” means the Gloucester Corporation Act 1928;

“the local Acts” means the Act of 1821 the Act of 1874 the Act of 1894 the Act of 1911 and the Act of 1928;

“the markets of the Corporation” means the markets and fairs authorised by the Act of 1821 the Act of 1874 the Act of 1894 and the Act of 1911 and the corn exchange and markets for the sale of vehicles agricultural implements and utensils established or held in connection therewith or ancillary thereto and any fairs authorised or held by custom in the city but does not include the general market for the retail sale of food stuffs and general merchandise heretofore holden in Eastgate Street in the city or any similar market from time to time established by the Corporation;

“the markets undertaking” means the markets undertaking of the Corporation.

3. The Corporation without prejudice to any other powers conferred upon them by the local Acts or by any other enactment may— Further powers as to markets.

(1) from time to time alter the places at which the markets of the Corporation respectively are or may be held and may establish and hold new markets and discontinue the whole or any part of any such existing or new markets;

(2) alter enlarge or improve any of the markets of the Corporation;

(3) erect or provide offices shops catering establishments stores warehouses and other tenements or buildings for the purposes of or in connection with any of the markets of the Corporation and the markets undertaking.

Power to grant leases.

4. The Corporation may grant leases (with the right if they think fit of assigning the same with their consent) of the markets market houses market places places for fairs slaughterhouses weighing houses weighing places and weighing machines from time to time under the management of the Corporation or any of them and the tolls or any of them and any of the stalls standing places benches grounds spaces and other conveniences in the markets of the Corporation or in any market house or market place for the time being belonging to them or under their management to any person for any period not exceeding seven years and may grant leases (with a similar right) of any office shop catering establishment store warehouse tenement cellar or building situate in any of the markets of the Corporation or forming part of or acquired or erected in connection with the markets undertaking including any premises not used for the time being in connection with the markets undertaking to any person for such period as the Corporation may think fit.

Market tolls.

5.—(1) The Corporation may as respects any market held by them under the local Acts as altered by this Order demand and take in respect of the articles mentioned in Schedules A B C and D to this Order tolls and charges not exceeding those specified therein.

(2) The Corporation may with the sanction of the Minister from time to time alter or add to the tolls mentioned in the said schedules and any such altered tolls shall as from the date on which they come into operation be substituted for the corresponding tolls payable under the said schedules respectively.

Repeals.

6. The undermentioned sections of the local Acts are hereby repealed :—

The Act of 1821—

Section II (Regulating markets) so far as it empowers the Corporation to nominate and appoint officers ;

Section VII (Power to let tolls).

The Act of 1874—

Section 24 (Power to enlarge market spaces) ;

Section 25 (Power to take market and fair tolls) ;

Section 27 (Application of tolls of market).

The Act of 1894—

In section 71 (Sale of hay and straw in cattle market) the words from "and may demand" to the end of the section.

The Act of 1911—

In section 100 (Sale of fruit and vegetables in cattle market) the words from "and may demand" to the end of the section.

The Act of 1928—

Section 68 (Power to take market and fair tolls).

Application of provisions of local Acts.

7. The undermentioned sections of the local Acts shall extend and apply with all necessary modifications to the markets of the Corporation and to any new markets established and held by them in

10 & 11 GEO. 6. *Ministry of Health* Ch. xxi.
Provisional Order Confirmation (Gloucester) Act, 1947.

pursuance of the powers in that behalf contained in this Order and to the tolls authorised from time to time to be levied in such markets :—

The Act of 1821—

Section IV (Exemptions from toll) ;

Section V (Stock sold by a freeman to a non-freeman to pay only half toll) ;

Section VI (Penalty for fraudulently claiming exemption or evading tolls) ;

Section X (Penalty for injuring market places or committing nuisances) ;

Section XIV (Application of tolls of the market and penalties).

The Act of 1874—

Section 26 (Tolls for sale of animals out of market).

The Act of 1911—

Section 101 (Freemen's exemption from toll) (Stock sold by a freeman to a non-freeman to pay only half toll) ;

Section 102 (Exemption from toll in respect of lands formerly belonging to Duchy of Lancaster) :

Provided that sections IV and V of the Act of 1821 and section 26 of the Act of 1874 shall extend and apply only to tolls and charges in respect of the sale of live stock.

8. If the Corporation establish a cattle market on any part of the Oxleaze section 104 (Buildings on Corporation meadows) of the Act of 1911 shall so long as a cattle market is held on that part have effect in relation to that part as if the words "not being within fifty feet of the highway known as Over Causeway" were omitted. Amendment of section 104 of Act of 1911.

9. The Corporation shall have power from time to time to borrow such sums as may be necessary for the purposes of this Order : Power to borrow.

Provided that the power conferred by this section shall not be exercised otherwise than in accordance with the provisions of any Defence Regulations within the meaning of the Supplies and Services (Transitional Powers) Act 1945 for the time being having effect by virtue of that Act and of any orders for the time being in force made by the Treasury under section 1, of the Borrowing (Control and Guarantees) Act 1946. 9 & 10 Geo. 6. c. 10.
9 & 10 Geo. 6. c. 58.

10.—(1) The Corporation may (if they think fit) provide a reserve fund in respect of the markets undertaking (hereinafter called "the markets reserve fund") by setting aside such an amount as they may from time to time think reasonable and investing the same in statutory securities and accumulating the same until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation in respect of the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking or for payment of the cost of renewing any part of the buildings or works forming part thereof or for any extension of the said buildings or works or otherwise for the benefit of the undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens. Reserve fund for markets undertaking.

(2) Resort may be had to the markets reserve fund although such fund may not at any time have reached or may have been reduced below the prescribed maximum.

25 & 26 Geo. 5.
c. lxxxvii.

(3) Subsection (2) of section 114 of the Gloucester Corporation Act 1935 shall apply to the markets reserve fund as if it were included in the term "capital reserve fund" therein.

Inquiries and
expenses.

23 & 24 Geo. 5.
c. 51.

11. The Minister may hold any inquiry which he may deem necessary for the purposes of this Order and subsections (2) to (5) of section 290 of the Local Government Act 1933 shall apply accordingly.

SCHEDULE A.

TOLLS FOR HAY STRAW AND OTHER AGRICULTURAL PRODUCE.

Hay straw vetches tares clover or other agricultural produce brought and exposed or offered for sale for each day—

	s.	d.
For every ton	3	0
For any less quantity per cwt.		6
Roots brought and exposed or offered for sale for each day—		
For every ton	1	6
For any less quantity per cwt.		3

SCHEDULE B.

TOLLS FOR FRUIT VEGETABLES POULTRY AND OTHER PRODUCE.

Fruit vegetables trees shrubs cider perry game and other such produce brought and exposed or offered for sale for each day—

	s.	d.
Fruit—		
For every hamper sieve box cask bag or sack		1
Vegetables—		
For every hamper sieve bag sack dozen or dozen bunches or bundles		1
For every large crate		2
Trees shrubs plants flowers mistletoe and holly—		
For every cart load	1	0
For every barrow truck or hand cart load		6
For every bundle		3
Cider and perry—		
For every cask containing more than 50 gallons and not more than 100 gallons		6
For every cask containing 50 gallons or less		3
Poultry game etc.—		
Fowls rabbits hares pigeons ducks and game per pair		1
Geese and turkeys per head		1
General—		
For horticultural or agricultural produce of any description or quantity not particularly specified in this schedule or in any other schedule to this Order		

Such reasonable sum or sums as the Corporation may think fit.

SCHEDULE C.

CATTLE MARKET TOLLS.

Livestock whether for sale for delivery to any person for display
 with or without any other animal or otherwise for each day—

	s.	d.
Stallions each	2	6
Horse mare or gelding each	1	0
Colts each		6
Bulls each	1	0
Fat and dairy cattle each	1	0
Store cattle each		6
Fat calves each		6
Store calves each		4
Mule or ass each		6
Rams each	1	0
Fat sheep and lambs each		2
Store sheep and lambs each		1½
Fat pigs each		4
Store pigs each		2
Goats each		4

Cheese and wool whether for sale for delivery to any person for
 display or otherwise for each day—

	s.	d.
Cheese per ton	5	0
Cheese for any less quantity—		
per cwt.		6
per lb.		½
Wool per pack	2	6

Lairage and pennage for each day—

Lairage (lock-up)	1	0
Pen for lambs and sheep per score	1	0
Pen for lambs and sheep per half-score		6
Pen for swine or hogs per pen	2	0

SCHEDULE D.

TOLLS FOR VEHICLES IMPLEMENTS ETC.

Vehicles implements and other goods brought and exposed or offered for sale for each day—

	s.	d.
Carriages (four wheels) each	2	0
Carriages (two wheels) each	1	0
Motor cars (up to and including £10 in value) each	2	6
Motor cars (over £10 in value) each	5	0
Motor cycles each	1	0
Dairy utensils per £ of value		2
Miscellaneous goods per £ of value		2
Agricultural implements (large) each	1	0
Agricultural implements (small) each		6
Harness per set	1	0
Poultry houses per £ of value		2
Poultry appliances per £ of value		2

For any of the above articles brought to the market and left there after the closing thereof and remaining therein for two clear days thereafter a charge equivalent to the toll applicable to such article shall be made in respect of each subsequent day or part of a day on which the article shall remain in the market (Sundays Public and Bank Holidays being disregarded for the purpose of this provision).

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